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CASE #	CASE NAME	HEARING NAME
CVPS2301515	NEW GENERATION INVESTMENTS, LLC VS PALM 10 ASSOCIATES, LLC	HEARING ON MOTION TO TAX COSTS BY SUSAN HARVEY, DESERT PACIFIC PROPERTIES, INC.

Tentative Ruling: Granted.

No opposition filed.

All costs are stricken as to Defendants Susan Harvey and Desert Pacific Properties, Inc.

Moving party to provide notice pursuant to CCP 1019.5.

On February 24, 2026, a jury returned verdicts in favor of defendant and cross defendants.

On April 10, 2026, Plaintiff filed a Memorandum of Costs ("MOC") seeking \$43,124.11.

Defendants Susan Harvey and Desert Pacific Properties, Inc. move to reduce costs to \$0.00 since Plaintiff was not the prevailing party.

Motion to Tax Costs

Under C.C.P. §1032(b), unless otherwise provided, "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that "are not allowable as costs, except when expressly authorized by law." An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).) In particular, the item "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "shall be reasonable in amount." (C.C.P. § 1033.5(c)(2) and (3).) Objection to any item or items on the cost memorandum may be made by filing and serving a noticed motion to tax cost. (C.C.P. § 1034; CRC 3.1700 (b)(1).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) "A verified memorandum of costs is prima facie evidence of their propriety," and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th at 774.)

Here, Plaintiff was not the prevailing party on the operative complaint. It appears that Plaintiff may have submitted the MOC as the Cross Defendant on Palm 10 Associates cross complaint. However, since the moving Defendants were not parties to the cross complaint, the court only needs to address whether Plaintiff was a prevailing party on the operative complaint, which they were not. GRANTED.